

Reseller Agreement

Effective 2026-01-21

Parties

Client	Bayer, Balistreri and Hodkiewicz
Provider	Yost, Corwin and Mertz
Term	36 months
Governing law	Republic of Ireland

Key clauses

1. Governing Law and Venue

This Agreement is governed by the laws specified, and any disputes shall be resolved exclusively in the courts of that jurisdiction.

2. Assignment

Neither party may assign this Agreement without the prior written consent of the other party, except in connection with a merger, acquisition, or sale of substantially all assets.

3. Force Majeure

Neither party shall be liable for any failure or delay in performance under this Agreement due to causes beyond its reasonable control, including acts of God, war, terrorism, civil disturbance, or natural disaster.

4. Entire Agreement

This Agreement constitutes the entire understanding between the parties and supersedes all prior agreements, written or oral, relating to its subject matter.

5. Term and Termination

This Agreement shall commence on the Effective Date and continue for the duration set forth herein, unless terminated earlier by either party upon thirty (30) days written notice for convenience or immediately for material breach not cured within fifteen (15) days of written notice.

6. Confidentiality

Each party agrees to maintain the confidentiality of all proprietary information disclosed by the other party and shall not disclose such information to any third party without prior written consent, except as required by law.

7. Indemnification

Each party shall indemnify and hold harmless the other party from any third-party claims arising out of its negligence or willful misconduct in performing this Agreement, subject to the limitations set forth herein.

8. Limitation of Liability

Neither party shall be liable for any indirect, incidental, consequential, or punitive damages, and total aggregate liability shall not exceed the fees paid in the twelve (12) months preceding the claim.

9. Payment Terms

All fees are due within thirty (30) days of invoice date. Late payments shall bear interest at the lesser of 1.5% per month or the maximum rate permitted by law.

10. Intellectual Property

All intellectual property created in the performance of this Agreement shall be owned by the party that created it, subject to any licenses expressly granted herein.